

Circular Memo.No.1271/Ser.C/2008, G.A. (Ser.C) Dept., dt.21.01.2008 regarding instructions on expeditious disposal of inquiry.

Subject Heading : Public Services – Instructions of Central Vigilance Commission, Government of India – Expeditious disposal of inquiry of disciplinary cases involving public servants due to retire shortly Regarding.

- Ref :
1. Cir.Memo.No.35676/Ser.C/1998, G.A. (Ser.C) Dept., dt.01.07.1998.
 2. Memo.No.23537/Ser.C/1999-5, G.A. (Ser.C) Dept., dt.28.07.1999.
 3. U.O.Note No.19952/Ser.C/2000, G.A. (Ser.C) Dept., dt.27.04.2000.
 4. Memo.No.51883/Ser.C/2002-2, G.A. (Ser.C) Dept., dt.19.12.2002.
 5. Cir.Memo.No.36500/Ser.C/2005, G.A. (Ser.C) Dept.,dt.19.04.2006.
 6. From the Central Vigilance Commission, Govt. of India, Office Order No.34/9/07, dt.27.09.2007.

In the reference 1st cited, instructions were issued that in all disciplinary cases the inquiry should be completed within three months in simple cases and five to six months in complicated cases. Further, it has been requested therein that the Secretaries to Government should review the progress of the inquiries of all disciplinary cases and submit a note on the cases pending beyond the stipulated time to Chief Secretary to Government and also to the Chief Minister, in order to ensure timely action in all disciplinary cases and to adhere to the time limit prescribed.

2. In the references 2nd and 3rd cited, a time schedule was prescribed to expedite Departmental Inquiries. In the reference 4th cited, the said instructions were reiterated for strict compliance. In the reference 5th cited, it has been ordered that the Inquiry Officers are liable for disciplinary action for their failure to complete the inquiry within the stipulated period and the Inquiry Officers should invariably take permission from the concerned disciplinary authorities by duly submitting detailed reasons for continuing the departmental inquiry beyond the stipulated period.

3. The Central Vigilance Commission, Government of India, in the reference 6th cited (copy enclosed) have stated that detailed instructions issued on the pre-requisites for seeking first / second stage advice of the Commission, include bio-data of Suspended Public Servant / Charged Officer, which inter-alia contains the date of superannuation and serves as a guide for the Chief Vigilance Officer / Disciplinary Authority so as to enable him to handle the case at a pace that should complete the action well in time. But, the CVOs/DAs often tend to lose sight of the superannuation dates, thereby creating situations which serve to the advantage of the SPS/COs and this becomes infructuous in organizations where the Conduct Rules do not provide for continuance of disciplinary action after retirement. The Central Vigilance Commission emphasized once again that all Vigilance / Administrative functionaries in an organization must invariably keep in mind the date of superannuation of the SPS / CO while handling disciplinary cases and anyone

found to have consciously ignored the fact should be held accountable for the delay that may lead to the eventual dropping of the proceedings.

4. In view of the above, the instructions issued in the references 1st to 5th cited are hereby reiterated. Government further direct that all Chief Vigilance Officers / Disciplinary Authorities must invariably keep in mind the date of superannuation of the SPS/CO while handling disciplinary cases and complete the disciplinary action well in time and anyone found to have consciously ignored this fact should, be held accountable for the delay that may lead to the eventual dropping of the proceedings.

5. All the Departments of Secretariat, Heads of Departments, District Collectors shall follow the above orders / instructions scrupulously and bring it to the notice of all concerned.